

		Plaintiff contends the motion did not have a practical effect because it did not entirely dispose of any entire cause of action and only removed five incidental paragraphs of the 71-paragraph FAC. Rather, Plaintiff argues the motion “back-fired on defendants because the result was an even stronger amended pleading which asserts the same core claims as the one which defendants’ motion challenged.” (Opp. at p. 2:2-4.) Defendants have also filed a motion to strike the SAC, set for hearing on July 16. The Court finds Defendants achieved a substantial practical benefit from their successful anti-SLAPP motion. The California case law cited above does not require Defendants to prevail as to an entire cause of action in order to recover fees. The disputed paragraphs of the FAC included factual allegations that formed a substantial part of the basis for Plaintiff’s professional negligence claim against Defendants. Specifically, Defendants removed the allegations that they improperly “concealed the sales of AlphaPet” in court filings and appearances and prevented the disclosure of records in response to subpoenas in order to conceal the alleged conversion of the business. (¶¶ 35, 36.) Defending against such claims would likely have required substantial discovery, investigation, and other preparation. Defendants substantially narrowed Plaintiff’s claims against them and are entitled to attorney fees related to the motion. As to the amount of fees, Defendants state they actually incurred attorney fees of \$14,593.50 related to the present motion, based on 17.9 hours of associate time at \$315/hour and 19.9 hours of partner time at \$450/hour. (Saunders Decl., ¶¶ 4-9.) Defendants also incurred filing costs of \$180 for each motion. However, Defendants seek to adjust attorney Jennifer Saunders’s rate upwards to \$1,203.07 per hour based on her 40+ years of experience under the Laffey Matrix, which is a fee schedule sometimes used by federal courts to determine. (Saunders Decl., Ex. B.) The Court finds Defendants’ actually-incurred fees were within a reasonable range for handling a relatively straightforward anti-SLAPP motion in Orange County and declines to adjust the rates upward under the Laffey Matrix, which is informative but has not been held to be binding on California courts. Because the Court only granted the SLAPP motion as to 80% of the allegations addressed in the motion, the amount of fees will be reduced by 20%. Therefore, the motion is granted in the total amount of \$11,962.80 (fees of \$14,593.50 + costs of \$360 x .8).
2	24-01371395 <i>Battersby vs. Hutchens</i>	1) Motion for Judgment on the Pleadings 2) Motion for Sanctions Motion 1: Motion for Judgment on the Pleadings

Defendants Wrubleski Meeks Corporation and Belen Rodriguez motion for judgment on the pleadings is GRANTED with 20 days leave to amend.

On 1/9/24, plaintiff Gregory N. Battersby filed the Complaint against defendant Betty Hutchens (“Hutchens”) alleging ten causes of action for (1) Breach of Contract; (2) Breach of Covenant of Good Faith and Fair Dealing; (3) Negligent Misrepresentation; (4) Fraud; (5) Constructive Eviction (6) Breach of Implied Warranty of Quiet Enjoyment; (7) Unfair Competition; (8) Wrongful Eviction; (9) Unjust Enrichment; and (10) Violation of Civil Code, section 1946.2.

Plaintiff subsequently named Belen Rodriguez (“Rodriguez”) and Wrubleski Meeks Corporation (“WM”) (collectively, “Moving Defendants”) as Does 1 and 2, respectively.

Moving Defendants move for judgment on the pleadings as to each of the cause of action.

1st, 2nd, 5th, 6th and 8th-10th Causes of Action

Moving Defendants argue the contract based claims, i.e. the 1st and 2nd causes of action, fail because there is no contractual relationship between Defendants and Plaintiff as evidence by the Lease Agreement attached as Exhibit A to the Complaint. Plaintiff explicitly concedes this point. (See Opposition, p. 3:1-2.)

Plaintiff also implicitly concedes the 5th, 6th and 8th-10th causes of action are not properly brought against Moving Defendants because he states “the Complaint, as pled, contains three causes of action against which Plaintiff intends to bring against Defendants, namely: negligent misrepresentation, fraud, and unfair competition[.]” (see Opposition, p. 3:2-4) and fails to address the 5th, 6th and 8th-10th causes of action in the opposition (see, generally, Opposition).

Therefore, the motion is GRANTED as to the 1st, 2nd, 5th, 6th and 8th-10th causes of action, with 20 days leave to amend.

3rd and 4th Causes of Action: Negligent Misrepresentation and Fraud

“A complaint for fraud must allege the following elements: (1) a knowingly false representation by the defendant; (2) an intent to deceive or induce reliance; (3) justifiable reliance by the plaintiff; and (4) resulting damages.” (*Service by Medallion, Inc. v. Clorox Co.* (1996) 44 Cal.App.4th 1807, 1816.)

“The elements of negligent misrepresentation are (1) a misrepresentation of a past or existing material fact, (2) made without reasonable ground for believing it to be true, (3) made with the intent to induce another's reliance on the fact misrepresented, (4) justifiable reliance on the misrepresentation, and (5) resulting damage.” (*Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 196.)

The elements of fraud are (1) misrepresentation (false representation, concealment, or nondisclosure); (2) knowledge of falsity; (3) intent to defraud, i.e., to induce reliance; (4) justifiable reliance; and (5) resulting damage. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974.) “The elements of a claim for negligent misrepresentation are nearly identical. Only the second element is different, requiring the absence of reasonable grounds for believing the misrepresentation to be true instead of knowledge of its falsity.” (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1166, *disapproved of on other grounds by Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905.)

“In California, fraud must be pled specifically; general and conclusory allegations do not suffice . . . This particularity requirement necessitates pleading *facts* which show how, when, where, to whom, and by what means the representations were tendered.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645 [emphasis in original].) In the case of a corporate defendant, “the plaintiff must allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.” (*Ibid.*)

Here, the Complaint does not allege any facts against Moving Defendants. Therefore, it fails to allege the fraud claims with the requisite specificity. The facts supporting the fraud claims are specifically alleged against Hutchens not Moving Defendants. For example, the Complaint identifies two representations defendant Hutchens made to Plaintiff to support the fraud claims. (See Compl., ¶¶ 11-13, 16, 23, 37-38, 46-50.) However, the Complaint does not allege either Moving Defendant made any representations to Plaintiff. Referring to all defendants as a singular “Defendant” in the Complaint does not comply with the specificity requirement for fraud claims. (See *Lazar, supra*, 12 Cal.4th at p. 645.)

Therefore, the motion as to the 3rd and 4th causes of action is GRANTED, with 20 days leave to amend.

7th Cause of Action: Unfair Competition

“The UCL outlaws as unfair competition any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising” (*Morgan v. AT&T Wireless Services, Inc.* (2009) 177 Cal.App.4th 1235, 1253, quoting Bus. & Prof. Code, § 17200.) “An ‘unlawful’ activity is any business activity that is forbidden by law. A ‘fraudulent’ activity includes any act or practice likely to deceive the public, even if no one is actually deceived.” (*Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, 907.) None of the elements of common law fraud are required to state a UCL claim based on the fraudulent business practice prong. (*Morgan, supra*, 177 Cal.App.4th at p. 1255.)

“Under the UCL's unfairness prong, courts consider either: (1) whether the challenged conduct is ‘tethered to any underlying constitutional, statutory or regulatory provision, or that it threatens an incipient violation of an antitrust law, or violates the policy or spirit of an antitrust law,’ (*Durell v. Sharp Healthcare*, 183 Cal. App. 4th 1350, 1366, 108 Cal.Rptr.3d 682 (2010)); (2) whether the practice is ‘immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers,’ *Morgan v. AT&T Wireless Servs., Inc.*, 177 Cal. App. 4th 1235, 1254, 99 Cal.Rptr.3d 768 (2009); or (3) whether the practice's impact on the victim outweighs ‘the reasons, justifications and motives of the alleged wrongdoer.’ *Id.*” (*Doe v. CVS Pharmacy, Inc.* (9th Cir. 2020) 982 F.3d 1204, 1214–1215.)

The plaintiff must also plead facts sufficient to establish standing to bring the UCL claim, i.e., that the plaintiff “has suffered injury in fact and has lost money or property as a result of the unfair competition.” (*Morgan, supra*, 177 Cal.App.4th at pp. 1253, 1257, quoting Bus. & Prof. Code, § 17204.) Where the UCL claim is based on the fraudulent prong, the plaintiff must allege “actual reliance” and “defendant’s misrepresentations were an immediate cause of the injury-causing conduct.” (*Id.* at p. 1257.) However, “the plaintiff is not required to allege that those misrepresentations were the sole or even the decisive cause of the injury-producing conduct. Furthermore, where . . . a plaintiff alleges exposure to a long-term advertising campaign, the plaintiff is not required to plead with an unrealistic degree of specificity that the plaintiff relied on particular advertisements or statements.” (*Ibid.*)

Here, the Complaint does not allege any specific facts against Moving Defendants. In his opposition, Plaintiff merely copies and pastes the allegations from the Complaint and claims they are sufficient. However, the allegations are conclusory and devoid of facts identifying the Moving Defendants or their alleged involvement in this matter.

The motion is GRANTED as to the 7th cause of action, with 20 days leave to amend.

Motion 2: Motion for Sanctions

Plaintiff Greg Battersby’s motion for issue sanctions and monetary sanctions is DENIED, in part, as to nonmonetary sanctions and GRANTED, in part, as to monetary sanctions in the reduced amount of \$1,358.

Plaintiff seeks issue and contempt sanctions against defendant Betty Hutchens (“Hutchens”), as well as monetary sanctions in the amount of \$4,074 against Hutchens and her counsel of record, Harry Safarian, Esq., on the grounds that Hutchens failed to comply with the Court’s 7/17/25 Minute Order.

If a party fails to obey a court order compelling it to provide further responses to interrogatories or requests for production, “the court may

		make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction . . . In lieu of or in addition to this sanction, the court may impose a monetary sanction . . .” (Code Civ. Proc., §§2030.300, subd. (e), 2031.310, subd. (i).) In addition, misuse of the discovery process is subject to monetary and nonmonetary sanctions, including contempt. (Code Civ. Proc., § 2023.030, subds. (a)-(e).) Disobeying a court order constitutes misuse of the discovery process. (Code Civ. Proc., § 2023.010, subd. (g).) “The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. The trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should attempt [] to tailor the sanction to the harm caused by the withheld discovery. The trial court cannot impose sanctions for misuse of the discovery process as a punishment. [¶] The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. Discovery sanctions should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery. If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse.” (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992 [cleaned up].) “[A]bsent unusual circumstances, such as repeated and egregious discovery abuses, two facts are generally prerequisite to the imposition of a nonmonetary sanction. There must be a failure to comply with a court order and the failure must be willful. [Citation.]” (<i>Lee v. Lee</i> (2009) 175 Cal.App.4th 1553, 1559 [italics in original]; <i>Valencia v. Mendoza</i> (2024) 103 Cal.App.5th 427, 447, quoting <i>Vallbona v. Springer</i> (1996) 43 Cal.App.4th 1525.) On 7/17/25, the Court ordered Hutchens to serve further verified responses to Plaintiff’s Form Interrogatories, Set One, and Requests for Production of Documents, Set One, along with all responsive documents. (Greer Decl., ¶ 5, Ex. F.) The Court also ordered Hutchens pay monetary sanctions to Plaintiff in the amount of \$2,570.50. (Ibid.) Hutchens was ordered to comply within fourteen days, i.e. by 7/31/25. (Ibid.) On 7/17/25, following the Court’s order, Plaintiff served a Notice of Ruling on Hutchens via email. (Greer Decl. at ¶ 6, Ex. G.) On 1/6/26, Hutchens served verified further responses and monetary sanctions. (Safarian Decl., ¶ 7, Exs. B, C.) The responses indicate Hutchens is not in possession of responsive documents because they were destroyed before this lawsuit was filed. Therefore, although untimely, Hutchens has fully complied with the order.
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		The Court finds Hutchens' failure to timely comply was not willful but instead due to Defense counsel's medical issues and miscommunications in Defense counsel's office. (Safarian Decl., ¶¶ 3-6, Ex. A.) Plaintiff has not produced evidence refuting Defendant's reasons. Issue sanctions therefore are not warranted. Nevertheless, Plaintiff is entitled to recover the cost of preparing the instant motion in the amount of \$1,358 (2.3 hours researching and drafting the motion and another hour anticipated for reply and hearing at a rate of \$485/hour). The Court finds the hours expended and the hourly rate to be reasonable. Based on the foregoing, the motion is DENIED, in part, as to issue sanctions and GRANTED, in part, as to monetary sanctions. Defendant and her attorney Harry A. Safarian are ORDERED to pay Plaintiff monetary sanctions in the amount of \$1,358 within ten days.
3	22-01263671 Chavez vs. Prime Construction Group Inc.	Motion to Enforce Settlement Plaintiff Cesar Chavez's Motion to Enforce Settlement Agreement is DENIED. Plaintiff moves pursuant to Code of Civil Procedure section 664.6 to enforce the parties' Settlement Agreement and enter judgment against defendants Prime Construction Group, Inc., Joe Manoukian, Joe Manoukian dba JM Floors Décor, and JM Flooring Concepts (collectively, Defendants) in the amount of \$17,000 plus 10% interest from the date of breach. On 3/19/26, the Court continued the hearing on this motion to allow Plaintiff more time to file a Supplemental Brief by April 9, 2026 close of business. (ROA 153.) Defendants were allowed to file an opposition by April 23, 2026 close of business. (ROA 153.) The parties timely did so. Code of Civil Procedure section 664.6, subdivision (a), provides as follows: "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." In ruling on a motion to enforce settlement, "the trial court acts as the trier of fact, determining whether the parties entered into a valid and binding settlement. Trial judges may consider oral testimony or may determine the motion upon declarations alone. When the same judge hears the settlement and the motion to enter judgment on the settlement, he or she may consult his [or her] memory." (<i>Osumi v. Sutton</i> (2007) 151 Cal.App.4th 1355, 1360 [cleaned up].) However, "nothing in